

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 14, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	24CV438915	Vivienne Vlaskovits vs Szilard Vlaskovits	Demurrer Scroll down to Line 1 for Tentative Ruling.
<u>LINES 2-4</u>	23CV423653	Ampere Computing LLC vs FICT Limited	Motion for Summary Adjudication (Line #2); Motion for Summary Adjudication (Line #3); and Motion for Summary Adjudication (Line #4); Tentative Ruling electronically mailed to parties pursuant to– California Rule of Court Rule 2.550 and 2.551(b)(3)(A).
<u>LINE 5</u>	25CV457348	Immigrant Rights Defense Council, LLC et al vs Shamsher Brar	Motion to Compel Request for Production of Documents & Sanctions Scroll down to Line 5 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

<u>LINE 6</u>	21CV387110	Michael Meredith vs Donald Williams et al	Motion to Appoint Receiver/ Special Master Before the Court is Michael W. Meredith’s (“Plaintiff”) motion to appoint a receiver to take over all operations of Del Medio Condominiums Homeowners Association, Inc. (“DMC”) to manage the six-unit homeowners association. Plaintiff filed this motion on June 13, 2023. Don Williams and Del Medio Condominiums Homeowners Association (“Defendants”) filed an opposition on October 6 and 17, 2023. A response to the opposition was also filed by the Plaintiff on October 17, 2023. This motion was initially set in front of the Honorable Shella Deen on May 27, 2025. Since that time, there has been six continuances at the request of the party for anticipated settlement of the case: May 27, 20205, August 28, 2025, October 21, 2025, December 18, 2025, February 23, 2026, March 19, 2026, and again on May 11, 2026 via email request. The parties have informed the Court that they have reached an agreement in principle, but are still negotiating settlement terms. The parties jointly seek a continuance to June 2, 2026. The Court notes the matter is set for trial on June 22, 2026. The Court also notes that there are several discovery motions scheduled for October 6, 2026 and October 13, 2026. The case was filed on September 28, 2021 and approaching the five-year mark. The Court also notes that the parties must comply with Local Rule 8(c) regarding filing notice for a continuance and Rule 7C(5) for withdrawal. At this time, based on the age of the case, number of continuances – six -, non-compliance with Local Rules, status of the case as presented by parties and trial schedule, and the court’s overly impacted motion schedule, the request to continuance the matter is DENIED and the matter is taken OFF CALENDAR. The parties may refile the motion as needed.
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LAW AND MOTION TENTATIVE RULINGS

LINE 7	24CV430011	Ernest Culp, an individual vs Audio Design SJ, Inc. et al	Motion to Consolidate OFF CALENDAR. On May 11, 2026, the moving party/defendant/cross-complainant Michael Hong filed a dismissal of his cross-complaint with prejudice. Thus, the motion to consolidate is moot and VACATED.
LINE 8	25CV460197	KIMCO Realty Op, LLC vs Michael Hong	Motion to Consolidate OFF CALENDAR. On May 11, 2026, the moving party/defendant/cross-complainant Michael Hong filed a dismissal of his cross-complaint with prejudice. Thus, the motion to consolidate is moot and VACATED.

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LAW AND MOTION TENTATIVE RULINGS

<u>LINE 9</u>	25CV460672	Gil Holland et al vs Wynn Insurance Company	Motion to Stay Before the Court is Defendant Wynn Insurance Company's Motion to Stay Judgment on Sister State Judgment that was filed on May 20, 2025. The motion was accompanied by a proof of service via mail service on May 13, 2025. The motion was initially set in front of the Honorable Shella Deen on January 13, 2026, and was continued to this date based on the stipulation of the parties to allow the Texas court action to be adjudicated. On April 15, 2026, the plaintiff filed a stipulated request and proposed order to continue the motion to stay (totaling 5 pages) on the grounds that the parties are exchanging settlement documents to resolve the dispute, the defendant challenging the underlying Texas judgment dated March 10, 2025 that awarded the plaintiff \$196,873.33 against the defendant. Parties represent that the continuance will allow the Texas Court Action to be adjudicated or resolved. On May 1, 2026, the plaintiff filed an opposition to the motion to stay (totaling 10 pages) on the ground that parties submitted a stipulated continuance request on April 15. Further, on May 1, the plaintiff was advised that the settlement documents of the Texas Court Action were executed on April 27, 2026 and the settlement payments are due on or before May 27, 2026. T Thereafter, the plaintiff would dismiss this present case as party of the underlying case. The May 1, 2026 stipulation was not processed with the Court. Based on this posture, the parties request this matter be continued for the settlement term to be completed. The parties have complied with Local Rule of Court 8(c) and based on the foregoing, the court GRANTS the parties joint request to continue the matter as the Texas action has settled. The matter will be CONTINUED to July 16, 2026 at 9:00 a.m. in Department 1.
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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	25CV464042	Wing On Construction Inc., a California corporation vs Dong Li, an individual et al	Motion: Withdraw as attorney Parties to appear.

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9:00 A.M.

Calendar Line # 1

Case Name Vivienne Vlaskovits vs Szilard Vlaskovits

Case No. 24CV438915

Demurrer

Defendant filed a demurrer on August 8, 2025 that was accompanied by a proof of service indicating mail service on the same day. Defendant filed an amended notice of demurrer on April 14, 2026 accompanied by a proof of service indicating mail service on the same day.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 1, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Id.*). Moving party meets its burden.

The demurrer is SUSTAINED without leave to amend. Moving party to prepare the formal Order.

Calendar Line # 5

Case Name Immigrant Rights Defense Council, LLC et al vs Shamsheer Brar

Case No. 25CV457348

Motion to Compel Request for Production of Documents & Sanctions

On July 18, 2025, the plaintiff, Immigration Rights Defense Council (“Plaintiff”) filed a motion to compel response to request for production of document (“RPD”), set one and sanctions against Defendant Shamsheer Brar. The motion was accompanied by a proof of service via mail delivery on that same day.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 1, 2026.¹ A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

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¹ The Court notes that this is the second discovery motion that was unopposed in this matter. On May 5, 2026, the court heard the plaintiff’s motion to deem request for admissions admitted and sanctions. The defendant did not oppose the motion.

I. BACKGROUND

The Court has carefully reviewed Plaintiff's moving papers including, notice of motion, memorandum of points and authorities, Declaration of Sebastian M. Medvei and attached Exhibit 1, and proof of service, (totaling 13 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2017.010:

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288) .Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (*Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 389).

A. Procedural Requirements

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified].)

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. Motion to Compel Further Responses to Request for Production of Documents

Code of Civil Procedure section 2031.310(b)(1) sets forth that a motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1)). In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct* (2002) 95 Cal. App.4th 92, 98).

III. ANALYSIS

Plaintiff served Defendant Brar with RPD, Set One, that contained seven (7) RPD on February 13, 2025 that was accompanied by a proof of service indicating mail service (Exhibit 1 to the Declaration of Medvei). Defendant’s verified responses to Plaintiff’s RPD was due on March 20, 2025. (Plaintiff’s motion, at p. 4). Defendant did not serve any responses and pursued this motion to compel responses to RPD, set one, on July 18, 2025 (Declaration of Medvei, at p. 6).

Here, the defendant failed to produce verified responses to discovery that were due over a year ago on March 20, 2025. The court was not provided with any information that the defendant sought an extension or substantially complied with the outstanding discovery prior to this hearing. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 1, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: “(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Here, Plaintiff's counsel seeks \$2,250.00 for attorney's fees based three hours of work in drafting the motion, researching, and preparing a reply brief, and appearing for the hearing at an hourly rate of \$750.00. The plaintiff also seeks \$60.00 in filing fees.

The request for sanctions is GRANTED in part and DENIED in part in regard to the total amount requested. Considering the relatively straightforward nature of the motion, no opposition brief being timely filed, no reply brief, the Court awards sanctions against the defendant in the amount of \$750.00, calculated based on 1.5 hours including one hour to file the present motion and half an hour to attend the hearing at the rate of \$500.00 per hour. The Court also grants the \$60.00 requested for filing fees. The total amount of sanctions award against the Defendant is \$810.00.

V. CONCLUSION

Based on the foregoing, Plaintiff's unopposed motion to deem RPD, set one is GRANTED.

Plaintiff's request for sanctions is GRANTED in part and DENIED in part as to the total requested amount. Defendant is ORDERED to pay the Plaintiff \$810.00 in sanctions within thirty (30) days of this Order.

Moving party to prepare the formal Order.

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